

OFFICE OF THE SECRETARY

PO Box 942883
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August 10, 2022

The Honorable John C. Lawson
Judge of the Superior Court
County of Los Angeles
275 Magnolia Avenue
Long Beach, CA 90802

Re: Cesar Armando Zuniga
CDCR No: T62342
Case No: NA046112
Date of Sentence: April 30, 2002

Dear Honorable John C. Lawson:

The purpose of this letter is to provide the court with the authority to resentence inmate Cesar Zuniga, T62342 pursuant to Penal Code (PC) Section 1172.1, subdivision (a)(1), based on a change in sentencing law. PC 1172.1(a)(1) provides that upon recommendation of the Secretary of the California Department of Corrections and Rehabilitation (CDCR), the court may consider recall a previously ordered sentence, provided the new sentence is no greater than the initial sentence.

Inmate Zuniga was convicted and sentenced as a third strike offender, of PC 211, Second Degree Robbery, with a count enhancement of PC 12022.53(b), Use of a Firearm. Inmate Zuniga received a term of 35 years to Life and has a minimum eligible parole date of November 12, 2027.

In light of those convictions, please consider the amendment to PC 12022.53(h), which became effective January 1, 2018. This section previously required a sentencing court to impose enhancements for the personal use of a firearm in the commission of enumerated felonies. However, courts are now empowered with discretion to strike or dismiss a personal use firearm enhancement at sentencing or resentencing pursuant to PC 1172.1(a)(1), in the interest of justice pursuant to PC 1385.

The inmate's case factors have been compiled and thoroughly reviewed by the Director of Adult Institutions and myself. Having reviewed the enclosed documentation, it appears that inmate Zuniga's sentence warrants the attention of the court. Pursuant to PC 1172.1(a)(1), as the Secretary, I recommend the sentence be recalled and that they be resentenced.

The Honorable John C. Lawson
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Sincerely,

A handwritten signature in blue ink that reads "K. Allison". The signature is written in a cursive, flowing style.

KATHLEEN ALLISON
Secretary

Enclosures:

Cumulative Case Summary

Abstract of Judgment

Minute Order

Information Summary

Cc: Los Angeles District Attorney's Office
Los Angeles Public Defender's Office